

Court No. - 21

Case :- WRIT - C No. - 2877 of 2023

Petitioner :- Amar Nath Yadav

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Dharendra Kumar Srivastava

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

Counsel for the respondents seeks time to obtain instructions.

List as fresh on 13.02.2023.

In the meantime, no recovery in pursuance of the impugned demand notice shall be made against the petitioner.

(Vikram D. Chauhan, J.)

(Manoj Kumar Gupta, J.)

Order Date :- 28.1.2023

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Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Vivek Kumar Singh, J.

Heard Shri Birendra Prasad Maurya, learned counsel for petitioner and Shri N.K. Tiwari, learned counsel for Purvanchal Vidyut Vitran Nigam.

The present writ petition has been preferred questioning the validity of impugned demand notice no.510 dated 29.01.2022 issued by Executive Engineer, Purvanchal Vidyut Vitran Nigam Ltd., Prayagraj-respondent no.3 amounting to Rs.2,18,213/-.

The matter was taken up on 24.01.2023. On the said date, the Co-ordinate Bench of this Court has asked learned counsel for the respondent to seek instructions in the matter and the recovery in pursuance of the impugned demand notice was stayed.

Today when the matter is taken up, Shri N.K. Tiwari, learned counsel for Purvanchal Vidyut Vitran Nigam has placed the instruction/letter 30.01.2023 sent by Executive Engineer- respondent no.3, whereby, he has written a letter to the Additional District Officer (F/R), Kaushambi indicating therein that the proceeding qua to the demand notice no.6495 dated 25.08.2022 is already withdrawn. The said instruction is taken on record.

Considering the facts and circumstances of the case, once the Authority has already withdrawn the recovery proceeding, we are not at all inclined to proceed further in the matter, as the cause of action does not survive. Suffice to indicate that the Authority would be at liberty to proceed strictly in accordance with law as per the procedure contemplates under Clause 6.8 and 8.1 of the Electricity Supply Code 2005.

With these observations, the writ petition is ***disposed of.***

Order Date :- 13.2.2023

A. Pandey